

**CV-24-005667 ROGERS, MELINDA vs WEIDNER, JEFFREY CHARLES –
Defendant’s Motion for Terminating Sanctions – GRANTED, and
unopposed.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Plaintiff failed to comply with discovery and has failed to comply with Court orders regarding said discovery. Plaintiff’s conduct amounts to a misuse of the discovery process. (Code Civ. Proc., § 2023.010.) Thus, the Court may issue “[a]n order dismissing the action” (Code Civ. Proc., § 2023.030.) The Court finds that Plaintiff has willfully failed to comply with discovery orders. Plaintiff has also failed to appear. Lesser sanctions have proven ineffective. Plaintiff’s conduct supports an inference of willfulness. Accordingly, Defendant’s unopposed motion for terminating sanctions is GRANTED. Plaintiff’s Complaint is DISMISSED. Defendant to submit a revised proposed order within five court days that conforms to this ruling.

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Accordingly, Defendant’s unopposed motion for terminating sanctions is GRANTED. Plaintiff’s Complaint is DISMISSED. Defendant to submit a revised proposed order within five court days that conforms to this ruling.